

CV-26-006895 PNC BANK NATIONAL ASSOCIATION vs VALLEY HOME EXPRESS - a) Plaintiff's Writ of Possession as to Valley Home Express - HEARING REQUIRED; b) Plaintiff's Writ of Possession as to Casey Cicero - HEARING REQUIRED.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: a-b) The Court has reviewed the applications, memorandum of points and authorities, declaration of Michael McGinley, supporting exhibits, proofs of service, and the court file. The applications seek prejudgment possession of a 2025 Bobcat D705-9 Fork Lift Truck, Serial No. FDB21-5105-02412. Based on the present record, plaintiff has made a prima facie showing that: - Plaintiff possesses a valid security interest in the collateral. - Defendants defaulted under the governing lease and guaranty. - Plaintiff is entitled to immediate possession of the collateral. - The collateral remains in defendants' possession or control. - The collateral is valued at approximately \$110,000. Because these matters are set by noticed application, the Court will conduct the scheduled hearing and permit any appearing defendant to present argument or evidence opposing issuance of the writs. Intended Ruling Absent Opposition: If no defendant appears, or if no evidence is presented that raises a substantial factual dispute concerning plaintiff's right to possession, the Court intends to: - GRANT Plaintiff's Applications for Writs of Possession; - ISSUE turnover orders pursuant to Code of Civil Procedure section 512.070; - WAIVE an undertaking on Plaintiff's part and require Defendants to post bond in the amount of \$138,253.75 if they oppose and retain possession of the collateral pursuant to Code of Civil Procedure section 515.010; and - DIRECT the Clerk to issue the writs. If a defendant appears and contests the applications, the Court will hear argument and determine whether further evidence or briefing is necessary before ruling. If a defendant opposes and retains possession of the fork lift by posting bond the Court notes it requires only a single bond as the applications address a single item of collateral. 3000065

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a-b) The Court has reviewed the applications, memorandum of points and authorities, declaration of Michael McGinley, supporting exhibits, proofs of service, and the court file.

The applications seek prejudgment possession of a 2025 Bobcat D705-9 Fork Lift Truck, Serial No. FDB21-5105-02412.

Based on the present record, plaintiff has made a prima facie showing that:

- Plaintiff possesses a valid security interest in the collateral.
- Defendants defaulted under the governing lease and guaranty.
- Plaintiff is entitled to immediate possession of the collateral.
- The collateral remains in defendants' possession or control.

- The collateral is valued at approximately \$110,000.

Because these matters are set by noticed application, the Court will conduct the scheduled hearing and permit any appearing defendant to present argument or evidence opposing issuance of the writs.

Intended Ruling Absent Opposition:

If no defendant appears, or if no evidence is presented that raises a substantial factual dispute concerning plaintiff's right to possession, the Court intends to:

- GRANT Plaintiff's Applications for Writs of Possession;

- ISSUE turnover orders pursuant to Code of Civil Procedure section 512.070;

- WAIVE an undertaking on Plaintiff's part and require Defendants to post bond in the amount of \$138,253.75 if they oppose and retain possession of the collateral pursuant to Code of Civil Procedure section 515.010; and

- DIRECT the Clerk to issue the writs.

If a defendant appears and contests the applications, the Court will hear argument and determine whether further evidence or briefing is necessary before ruling.

If a defendant opposes and retains possession of the fork lift by posting bond the Court notes it requires only a single bond as the applications address a single item of collateral.

3000065 - CONSERVATORSHIP OF MARTINEZ, JESUS - Conservator's Attorney's Motion to be Relieved as Counsel - DENIED without prejudice.

Attorney Grant Toeppen's motion to be relieved as counsel for Conservator Jesse Martinez is procedurally defective in several ways, including the following:

First, the notice of motion lists the wrong courthouse address.

Second, the proof of service for the motion fails to reflect service on the bond company as required by Probate Code § 1213(a)(4).

Third, the declaration filed in support of the motion fails to show adequate diligence to try to locate a current address for the client. Moving Counsel indicates that the client's address is the "last known," but the only effort made to track down the client was to send the motion papers to the client's last known address with a return receipt requested. There is no indication that the receipt came back signed or that any other effort was made to uncover the client's current address.

For the above reasons, the motion is DENIED without prejudice.

The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23: